

**BEFORE THE
FEDERAL MARITIME COMMISSION**

OJ COMMERCE, LLC,

Complainant,

DOCKET NO. 21-11

v.

HAMBURG SÜDAMERIKANISCHE
DAMPFSCHIFFFAHRTS-GESELLSCHAFT A/S & CO KG

and

HAMBURG SUD NORTH AMERICA, INC.,

Respondents.

JOINT STATUS REPORT

Pursuant to the Revised Scheduling Order dated June 29, 2022, Complainant OJ COMMERCE, LLC (“OJ Commerce”), and Respondents HAMBURG SUD NORTH AMERICA, INC. (“Hamburg NA”) and HAMBURG SÜDAMERIKANISCHE DAMPFSCHIFFFAHRTS-GESELLSCHAFT A/S & CO KG (“HSDG”) (collectively referred to as the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

Regarding progress made in discovery, the Parties have continued their document production and supplementation of discovery responses pursuant to the Order on Complainant’s Motion to Compel dated June 29, 2022 and have scheduled or are in the process of scheduling depositions for Complainant and Respondents’ witnesses. The next such deposition is set for July 19, 2022. HSDG also has responses to OJ Commerce’s Second Set of Requests for Production of Documents due on July 15, 2022, which HSDG has stated it intends to answer at that time.

As to settlement negotiations, the Parties have private mediation scheduled for Monday, July 18, 2022 with Harry Schafer of the Esquibel Communications Company via ZOOM.

Dated: July 15, 2022

/s/Aaron W. Davis
Aaron W. Davis
VALHALLA LEGAL, PLLC
204 W. 7th St., PMB 222
Northfield, MN 55057
Phone: (763) 957-2397
davis@valhallalegal.com

Shlomo Y. Hecht
Shlomo Y. Hecht, P.A.
4538 NW 85th Ave.
Coral Springs, FL 33065
Phone: 954-861-0025
sam@hechtlawpa.com

Attorneys for Complainant

Respectfully submitted,

/s/ Wayne R. Rohde
Wayne R. Rohde
Kathryn Sobotta
COZEN O'CONNOR
1200 Nineteenth Street, NW
Suite 300
Washington, D.C. 20036
(202) 463-2507
wrohde@cozen.com
ksobotta@cozen.com

Attorneys for Respondents